

STATE OF MICHIGAN
IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE
FAMILY DIVISION, PERSONAL PROTECTION ORDER DOCKET

ADRIENNE MARJORIE ROCKENHAUS,
Petitioner,

v.

CONRAD ALAN ROCKENHAUS,
Respondent.

Case No. **26-102221-PP**

Hon. **PPO Docket**
(Assignment Pending)

**RESPONDENT'S MOTION TO COMPEL COMPLIANCE WITH MCR 3.707(A)(2) AND
TO SCHEDULE HEARING ON PENDING MOTION TO MODIFY, EXTEND, OR
TERMINATE PERSONAL PROTECTION ORDER**

NOW COMES Respondent, **Conrad Alan Rockenhaus**, appearing pro se, and respectfully moves this Honorable Court for an Order compelling compliance with Michigan Court Rule 3.707(A)(2) and scheduling a hearing on Respondent's pending Motion to Modify, Extend, or Terminate Personal Protection Order, and in support states:

I. INTRODUCTION

- MCR 3.707(A)(2) is mandatory.** It provides that "*the court must schedule and hold a hearing on a motion to modify or terminate a personal protection order within 14 days of the filing of the motion.*" The rule is independently codified at MCL 600.2950(14) and MCL 600.2950a(14). Michigan Court of Appeals authority confirms the rule is mandatory and that failure to comply is reversible error. *See CAJ v KDT*, 339 Mich App 459; 984 NW2d 504 (2021); *JLS v HRS*, ___ Mich App ___ (2024); *HMM v JS*, ___ Mich App ___ (2024).
- The deadline expired forty-one (41) days ago.** Respondent's Motion to Modify, Extend, or Terminate Personal Protection Order was filed March 12, 2026, ten (10) days after Respondent received actual notice of the ex parte PPO upon his release from federal custody on March 2, 2026. Filing was timely under MCR 3.707(A)(1)(b). The fourteen-day mandatory hearing deadline under MCR 3.707(A)(2) was March 26, 2026. The mandatory hearing has not been held. The merits hearing on Respondent's Motion to Terminate has never occurred.
- The motion has now been pending for fifty-five (55) days.** That period spans the recusal of the Honorable Y.C. Abraham and continues into the pending docket reassignment.
- The Court retains no discretion to refuse compliance with MCR 3.707(A)(2). Respondent therefore moves this Honorable Court to schedule the merits hearing on the pending Motion to Modify, Extend, or Terminate Personal Protection Order at the earliest available date upon docket reassignment, and in any event consistent with this Court's mandatory obligation under MCR 3.707(A)(2).

II. PROCEDURAL BACKGROUND

- The ex parte Personal Protection Order was entered February 20, 2026, while Respondent was incarcerated at FCI Milan.
- Respondent was released from federal custody on March 2, 2026. Actual notice of the ex parte PPO was received that same day.

7. On March 12, 2026, ten (10) days after actual notice, Respondent filed his Motion to Modify, Extend, or Terminate Personal Protection Order. Filing was timely under MCR 3.707(A)(1)(b).
 8. The mandatory hearing deadline under MCR 3.707(A)(2) expired March 26, 2026. The mandatory hearing was not scheduled and has not been held.
 9. Between March 12, 2026 and the present, Respondent has filed the following intervening motions and notices in this matter, all of which remain pending or have been incorporated into the procedural record: a Supplemental Motion in Support of Termination of PPO; a Motion for Court Supervised Access to Property; a Motion to Deny False PPO Violation Claims; a Motion for Issuance of Subpoena (Helgren); the Notice of Judicial Notice for the April 29 hearing; and various supporting affidavits and exhibit submissions.
 10. On April 29, 2026, this Court conducted a Show Cause hearing on a separate motion filed by Petitioner. Petitioner failed to appear. The Show Cause was dismissed. **The April 29 hearing was not the merits hearing on Respondent's Motion to Terminate.** The merits hearing has never been scheduled.
 11. Following the April 29 hearing, Aldrich Legal Services, P.L.L.C., the firm that had appeared as counsel of record for Petitioner in this matter, was orally granted leave to withdraw. Petitioner is now self-represented in this PPO proceeding.
 12. The Honorable Y.C. Abraham has recused from this matter. The case is currently pending docket reassignment to a successor judge of the Wayne Third Circuit Personal Protection Order Docket.
 13. Respondent further notes, without reliance, that on April 30, 2026, the related Washtenaw County divorce matter (Case No. 26-737-DO) was reassigned to the Honorable Carol Goodson by order of the Chief Judge. That reassignment does not bear on the procedural posture of this PPO matter; it is referenced solely as context to the Court that the broader case posture is in active reorganization across both jurisdictions, and that scheduling of the mandatory PPO hearing therefore should not be deferred in anticipation of any external event.
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III. ADDITIONAL HARM SUPPORTING IMMEDIATE COMPLIANCE

The mandatory nature of MCR 3.707(A)(2) is, standing alone, sufficient to require immediate scheduling of the merits hearing. The harms set forth in this Section are presented as additional support, not as a substitute for the rule-compliance ground.

A. Deprivation of VA-Prescribed Medical Device

14. Respondent is a one hundred percent (100%) service-connected disabled combat veteran. Service-connected disabilities include traumatic brain injury, seizure disorder, and other conditions for which Respondent receives ongoing treatment through the Department of Veterans Affairs.
15. Among the medical devices prescribed by the VA as part of Respondent's treatment regimen is an electrical-stimulation (e-stim) unit. This device is an integral component of an established, VA-supervised therapy protocol.
16. The e-stim device is presently held at the marital residence located at the property to which the Personal Protection Order bars Respondent's access. Respondent has been deprived of access to this VA-prescribed medical device since his release from federal custody on March 2, 2026, a period of sixty-five (65) days as of the filing of this Motion.
17. Deprivation of a VA-prescribed medical device is not equivalent to deprivation of ordinary personal property. It is interference with a clinician-supervised treatment regimen for service-connected medical conditions. The clinical impact of sixty-five days without prescribed therapy is ongoing and accumulating.
18. The underlying VA prescription is on file with the Department of Veterans Affairs and is available for verification by the Court should verification be required.

B. Inaccessible Financial Records Required for Active Identity-Theft Remediation

19. On May 4, 2026, Respondent filed a complaint with the Federal Trade Commission through IdentityTheft.gov. The FTC has assigned Reference Number 201103951 to the matter. The FTC issues an Identity Theft Report;

Respondent uses that Report to file disputes directly with creditors, financial institutions, and credit-reporting agencies.

20. The dispute mechanisms available to Respondent operate under federal consumer-finance law: 15 U.S.C. § 1666 (Fair Credit Billing Act, billing-error disputes); 15 U.S.C. § 1693f (Electronic Fund Transfer Act, unauthorized-transfer disputes, with implementing regulation at 12 C.F.R. § 1005.11); and 15 U.S.C. § 1681i (Fair Credit Reporting Act, credit-bureau disputes). Each statute imposes timing obligations on the disputing consumer and the responding institution. To file substantively complete disputes under any of these statutes, Respondent requires access to financial records (bank statements, credit-card statements, account documentation, prior tax filings, and correspondence with financial institutions) that establish the timeline of fraudulent activity, document the legitimate baseline of Respondent's accounts, and support the disputes.
21. Substantial portions of the financial records Respondent requires are presently held at the marital residence to which the Personal Protection Order bars his access. The PPO no-contact framework prevents Respondent from retrieving the records, directing a third party to retrieve them, or otherwise accessing them through the property-holder.
22. The harm is that Respondent cannot file substantively complete consumer-finance disputes, and in particular cannot meaningfully participate in the FTC-supervised remediation process, until the records are accessible. That harm is concrete and continues to accrue while the mandatory hearing remains unscheduled.

C. Continuing Property-Deprivation Harm Previously Documented

23. The Court is reminded that Respondent's pending Motion to Modify, Extend, or Terminate Personal Protection Order, and Respondent's Motion for Court Supervised Access to Property previously filed, document additional categories of property-deprivation harm including (without limitation): identity documents (driver's license, VA Identification Card, Social Security card, Birth Certificate, DD Form 214); electronic devices essential to disability-accommodated work (iPhone 16e, iPhone 15 Pro Max, Apple Watch, AirPods, iPad, Mac Mini); clothing including court-appropriate attire; and personal effects of unique or sentimental significance.
24. The duration of that broader property deprivation is sixty-five (65) days as of the filing of this Motion. The grounds set forth in subsections A and B of this Section are independently sufficient. The previously-documented property-deprivation grounds are reiterated as cumulative.

IV. AUTHORITY

25. **The Rule.** MCR 3.707(A)(2) provides that "*the court must schedule and hold a hearing on a motion to modify or terminate a personal protection order within 14 days of the filing of the motion.*" The obligation is independently codified at MCL 600.2950(14) and MCL 600.2950a(14).
26. **Appellate Authority.** The Michigan Court of Appeals has confirmed that compliance with MCR 3.707(A)(2) is mandatory:
 - a. *CAJ v KDT*, 339 Mich App 459; 984 NW2d 504 (2021), reversed the trial court for failure to comply with MCR 3.707(A)(2), holding that the trial court was required to hold a hearing regarding the termination of the PPO.
 - b. *JLS v HRS*, ___ Mich App ___ (2024), reaffirmed that a respondent's motion to terminate a PPO triggers an obligation on the part of the petitioner to establish a justification for continuance of the PPO at a hearing on the respondent's motion.
 - c. *HMM v JS*, ___ Mich App ___ (2024), confirmed that the burden of proof at the merits hearing remains with the petitioner throughout the proceeding.
27. **Application.** Respondent's Motion to Modify, Extend, or Terminate was filed within the timely-filing window of MCR 3.707(A)(1)(b) (ten days after actual notice; well within fourteen days). The mandatory hearing deadline under MCR 3.707(A)(2) was March 26, 2026. That deadline expired forty-one (41) days ago. The motion has been pending fifty-five (55) days. The Court retains no discretion to decline to schedule the merits hearing.
28. **Scope of Relief.** This Motion seeks compliance with the scheduling obligation. It does not seek substantive relief

on the underlying Motion to Terminate. The merits of termination are reserved for the merits hearing, at which the burden of proof rests with Petitioner consistent with *HMM v JS*.

V. RELIEF REQUESTED

WHEREFORE, Respondent respectfully requests that this Honorable Court:

- A. Set the pending Motion to Modify, Extend, or Terminate Personal Protection Order for merits hearing at the earliest available date upon docket reassignment, consistent with the Court's mandatory obligation under MCR 3.707(A)(2);
 - B. Set the pending Motion for Court Supervised Access to Property for hearing concurrently with, or in advance of, the merits hearing on the Motion to Terminate, in light of the property-deprivation harms set forth in Section III above;
 - C. In the alternative, set a status conference at the Court's earliest available date upon docket reassignment for purposes of placing both pending motions on the schedule consistent with this Order; and
 - D. Grant such other and further relief as the Court deems just and equitable.
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Respectfully submitted,

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Respondent Pro Se

1690 Brookfield Drive

Ann Arbor, Michigan 48103

(254) 340-7910

conrad@rockenhaus.net

Date: May 6, 2026

**AFFIDAVIT IN SUPPORT OF MOTION TO COMPEL COMPLIANCE WITH MCR
3.707(A)(2)**

STATE OF MICHIGAN)

) ss.

COUNTY OF WASHTENAW)

I, Conrad Alan Rockenhaus, being duly sworn, depose and state as follows:

1. I am the Respondent in the above-captioned matter. I am over the age of eighteen and competent to testify to the matters set forth herein. The facts stated in this Affidavit are based on my personal knowledge.
2. I am a one hundred percent (100%) service-connected disabled combat veteran of the United States Navy. I served deployments including operations in Kosovo (1999) with 1st Air Naval Gunfire Liaison Company (ANGLICO) and Operation Enduring Freedom (Afghanistan) with Radio Battalion. My service-connected disabilities include traumatic brain injury and seizure disorder.
3. I was released from federal custody at FCI Milan on March 2, 2026. I received actual notice of the ex parte Personal Protection Order entered February 20, 2026 on that same date, March 2, 2026.
4. On March 12, 2026, ten (10) days after I received actual notice of the PPO, I filed my Motion to Modify, Extend, or Terminate Personal Protection Order in this matter.
5. On April 29, 2026, this Court conducted a Show Cause hearing on a separate motion filed by Petitioner. The April 29 hearing was not, and was not scheduled as, the merits hearing on my Motion to Modify, Extend, or Terminate. To my knowledge, the merits hearing on my Motion to Terminate has never been scheduled.
6. Among the medical devices prescribed to me by the Department of Veterans Affairs as part of my treatment regimen is an electrical-stimulation (e-stim) unit. The device is part of an established, VA-supervised therapy protocol for my service-connected conditions.
7. The e-stim device is presently held at the marital residence to which the Personal Protection Order bars my access. I have been without access to this medical device since March 2, 2026, a period of sixty-five (65) days as of the filing of this Motion.
8. On May 4, 2026, I filed a complaint with the Federal Trade Commission through IdentityTheft.gov regarding identity theft. The FTC has assigned Reference Number 201103951 to my matter. A copy of the FTC reference-number confirmation email is available for in-camera review or production should the Court require it.
9. To file substantively complete disputes with creditors, financial institutions, and credit-reporting agencies under federal consumer-finance law, I require access to financial records (including bank statements, credit-card statements, account documentation, prior tax filings, and correspondence with financial institutions) that are presently held at the residence to which the Personal Protection Order bars my access.
10. The PPO no-contact framework prevents me from retrieving the records, directing a third party to retrieve them, or otherwise accessing them through the property-holder.
11. The deprivation of the e-stim medical device, the inaccessibility of the financial records required for active identity-theft remediation, and the broader property-deprivation harms previously documented in my pending Motion to Modify, Extend, or Terminate and my Motion for Court Supervised Access to Property are not speculative. They are concrete, ongoing, and continue to accrue each day the merits hearing on my Motion to Terminate remains unscheduled.
12. I make this Affidavit in support of Respondent's Motion to Compel Compliance with MCR 3.707(A)(2) and to Schedule Hearing on Pending Motion to Modify, Extend, or Terminate Personal Protection Order.

I declare under penalty of perjury that the foregoing is true and correct.



Conrad Alan Rockenhaus

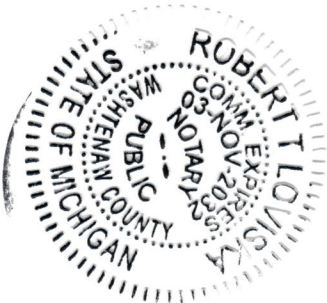
Subscribed and sworn before me this 6th day of May, 2026.



Notary Public

County of Washtenaw, State of Michigan

My Commission Expires: 11/3/2032



CERTIFICATE OF SERVICE

I, Conrad Alan Rockenhaus, hereby certify that on May 6, 2026, I caused a true and correct copy of the foregoing Motion to Compel Compliance with MCR 3.707(A)(2) and to Schedule Hearing on Pending Motion to Modify, Extend, or Terminate Personal Protection Order, together with the Affidavit in Support thereof, to be served upon Petitioner, who is now self-represented in this PPO matter, by First Class United States Mail through a third-party server, pursuant to this Court's Order Regarding Alternate Service entered March 24, 2026, at her address of record:

Adrienne Marjorie Rockenhaus
26695 Ross Drive
Redford, Michigan 48239

A separate Affidavit of the third-party server is filed herewith.

/s/ Conrad A. Rockenhaus
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(254) 340-7910
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Date: May 6, 2026